STATE OF MICHIGAN JUDICIAL DISTRICT	CONSENT ORDER FOR CONDITIONAL DISMISSAL Landlord-Tenant	CASE NO. and JUDGE

Court address **Court telephone no.**

Plaintiff's name, address, and telephone no.	v	Defendant's name, address, and telephone no.
Plaintiff's attorney, bar no., address, and telephone no.		Defendant's attorney, bar no., address, and telephone no.

THE COURT FINDS the parties agree to the conditional dismissal of the case under the terms below.

☐ Pursuant to MCR 4.201(K)(2)(e)(iv) the court determines a valid waiver of rights exists and the terms of the conditional dismissal are fair.

THE COURT ORDERS

1. The case is dismissed without prejudice subject to the conditions below.

2. Defendant shall pay the following to plaintiff ☐ pursuant to the terms in item 3:
☐ on or before _____ (Date):

   a. Rent ..... $ _____ due through the time period ending _____ (Date)
   b. Court costs ..... $ _____
   c. Other money due ..... $ _____
   d. Total ..... $ _____

☐ 3. Further conditions: _____

_____

_____

4. If defendant fails to pay the rent and other costs or meet other conditions as set forth above the plaintiff may seek entry of an order for reinstatement of the case and entry of judgment.

   ☐ a. Plaintiff shall file an affidavit with the court and serve the defendant with the affidavit and notice as required by MCR 2.602(C). If defendant does not file verified objections to the affidavit within 14 days of service of the notice pursuant to MCR 2.602(C)(2)(d), the order for reinstatement of case and entry of judgment, a judgment for money (if eligible and requested in the complaint), and an order of eviction shall enter simultaneously without notice or further process.*

   OR

   ☐ b. This action may proceed without notice to the defendant or further process. The parties specifically waive notice under MCR 2.602(C)(2)(d) and MCR 4.201(M)(3). This action will be reinstated upon the plaintiff's submission of an affidavit of default, order for reinstatement of case and entry of judgment, a judgment for money (if eligible and requested in the complaint), and an order of eviction, which will enter simultaneously without notice or further process.*

*For a defendant on active military duty, default judgment shall not be entered except as provided by the Servicemembers Civil Relief Act.

Distribute form to:
Court
Plaintiff
Defendant

5. Defendant remains responsible for paying the entire amount as stated in this order that is not paid by Michigan Department of Health and Human Services (MDHHS) or any other third party within the time period provided by this order.

6. The defendant may be liable for money damages if additional rent is owed or if there is damage to the property.

☐ 7. Partial payment by defendant of the amount due in item 2d above will not prevent issuance of an order of eviction should a judgment enter after default on this conditional dismissal.

☐ MCR 4.201(J) was explained to the parties.

_____
Judge signature and date

Approved as to form and content.

_____
Plaintiff/Plaintiff's attorney signature and date

_____
Defendant's attorney signature and date

_____
Defendant's signature and date (optional if represented)